

extent Petitioner disagrees with this interpretation, he shall file an Amended Petition.

- (5) The Petition states that all heirs at law have waived bond. (Pet., § 3(e)(3).) However, there are no bond waiver forms (DE-142/DE-111) in the file. Petitioner is directed to submit bond waiver forms by all heirs. Otherwise, the proper amount of bond to be imposed is \$420,000. (Prob. Code, § 10453.)
- (6) There is no proposed order (DE-140) or proposed letters (DE-150) on file.

However, if no publication has been made, the Court will be forced to DENY the Petition without prejudice. Proper publication is required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C).) Therefore, the Petition may not be heard unless and until an affidavit of publication is on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing on the Petition must be no less than 15 days and no more than 30 days after the Petition is filed. (Prob. C. §8003(a).) For this reason, if no proper publication of the hearing was made, the Court is without jurisdiction to hear the Petition and cannot continue the hearing to permit Petitioner to cure the defect.

.....

Estate of Allen Paul Stanton

26PR000120

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The matter is CONTINUED to August 20, 2026, at 8:30 a.m. in Dept. A to allow Petitioner to remedy the following issue. The Petition indicates that bond is not required because all beneficiaries waive bond. (See Pet., at §§ 2, subd. (d)(1) and 3, subd. (e)(3).) There is, however, no waiver on file for identified heir JoAnn Wanek.

.....

Estate of Lydia Fajardo Santos

26PR000142

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: There is no proof of publication on file. If a proper proof of publication is filed prior to the hearing, the petition will be GRANTED, Richard S. Thomas will be appointed as probate referee, and the matter will be set for a Status Hearing Re: Final Distribution on August 04, 2027, at 8:30 a.m. in Dept. A. Petitioner will need to submit Proposed letters (DE-150) for the Court's signature.

However, if no publication has been made, the Court will be forced to DENY the Petition without prejudice. Publication is required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C).) Therefore, the Petition may not be heard unless and until an affidavit of publication is on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing

on the Petition must be no less than 15 days and no more than 30 days after the Petition is filed. (Prob. C. §8003(a).) For this reason, if no publication of the hearing was made, the Court is without jurisdiction to hear the Petition and cannot continue the hearing to permit Petitioner to cure the defect.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

25 Executive, LLC v. Julie Nguyen

25CV002614

CROSS-DEFENDANTS’ DEMURRER TO, AND MOTION TO STRIKE PORTIONS OF, FIRST AMENDED CROSS-COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to August 28, 2026, at 8:30 a.m. in Dept. A. Nguyen is ordered to submit additional briefing and Cross-Defendants are granted leave to file a sur-reply as set forth below. The Case Management Conference set for August 4, 2026 is CONTINUED to October 20, 2026 at 8:30 am in Dept. A.

Cross-Defendants 25 Executive, LLC, Jeremy Sill, Jesse Van Coutren; Michael Holcomb; and Strong & Hayden (“Cross-Defendants”) demur, pursuant to Code of Civil Procedure sections 430.10, subdivisions (e) and (f),² to the First Amended Cross-Complaint (“FACC”) of Julie Nguyen (“Nguyen”). Cross-Defendants further move, pursuant to Code of Civil Procedure sections 435 and 436, subdivision (a), for an order striking the following portions of the FACC: (a) Paragraphs 30, 42, and 47, and Prayer Paragraph 2; (b) Paragraphs 30, 42, and 47, and Prayer Paragraph 2; (c) Prayer Paragraph 7, insofar as it seeks attorney’s fees; and (d) Cross-Defendants further move to strike all allegations and requests for relief seeking recovery for injuries.

Rather than opposing the Demurrer and Motion to Strike, on July 22, 2026, Nguyen filed a purported Second Amended Cross-Complaint (“SACC”).

“A party may amend its pleading once without leave of the court at any time ... after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. A party may amend the pleading after the date for filing an opposition to the demurrer or motion to strike, upon stipulation by the parties.” (§ 472, subd. (a) (Section 472).) That section, however, cannot be relied upon by a party to *further* amend an already amended pleading. (*Hedwall v. PCMV, LLC* (2018) 22 Cal.App.5th 564, 575 [“under section 472, the right to amend a cross-complaint as a matter of right is...limited to the original version of the cross-complaint”.])

Nguyen filed a First Amended Cross-Complaint (“FACC”) on April 23, 2026. Pursuant to the holding in *Hedwell*, Section 472 does not provide Nguyen the right to further amend the operative cross-complaint without leave of court. Because Nguyen did not obtain the Court’s

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.